

GZ: 2024-0.215.259 dated March 28, 2024 (Case Number: DSB-D124.0775/24)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical information, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. Names and abbreviations, especially of political parties, that are derived from publicly accessible documents (especially from the subject of the relevant investigative committee) or are generally known have not been pseudonymized.]

DECISION

RULING

The Data Protection Authority decides on the application pursuant to § 22 DSG in conjunction with § 57 para. 1 AVG dated March 15, 2024, by Ulrich A*** (Applicant), represented by L*** & H*** Rechtsanwälte GmbH, S*** Street **4/3, **** Vienna, for the prohibition of further storage, processing, and transmission of data already transmitted by the Federal Ministry of Finance and the Federal Ministry of Justice to the investigative committee regarding two-class administration due to the preferential treatment of billionaires by ÖVP government members (COFAG Investigative Committee) as well as any further transmission of personal data concerning him to the COFAG Investigative Committee against 1) the Federal Minister of Finance (First Respondent), 2) the Federal Minister of Justice (Second Respondent), and 3) the Parliamentary Investigative Committee regarding two-class administration due to the preferential treatment of billionaires by ÖVP government members (COFAG Investigative Committee) of the Austrian National Council (Third Respondent) as follows:

- The application is dismissed as unfounded.

Legal bases: §§ 22 para. 1 and 4 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Art. 51, 57, and 58 of the General Data Protection Regulation (GDPR); §§ 39, 56, 57 para. 1 and 58 of the General Administrative Procedure Act 1991 (AVG), Federal Law Gazette No. 51/1991 as amended; Art. 53 and Art. 138b of the Federal Constitutional Law (B-VG), Federal Law Gazette No. 1/1930 as amended; § 25 of the Procedural Regulations for Parliamentary Investigative Committees (VO-UA), Federal Law Gazette I No. 99/2014 as amended.

REASONING

A. Submissions of the Parties and Procedural History

The Applicant submitted an application on March 5, 2024, represented by L*** & H*** Rechtsanwälte GmbH, for the issuance of a mandate decision pursuant to § 22 para. 4 DSG in conjunction with § 57 AVG to prohibit data processing.

In justification, the Applicant stated that the First Respondent and the Second Respondent had submitted extensive files and documents to the Third Respondent, which contained numerous personal data concerning the Applicant. This transmission of his data, as well as their storage and other processing by the Third Respondent, was unlawful. The Data Protection Authority should therefore prohibit the Respondents from further storage, processing, and transmission of the data transmitted by the First Respondent and the Second Respondent to the Third Respondent, as well as any further transmission of personal data concerning the Applicant to the Third Respondent.

The Applicant's request specifically targets the transmission of the Applicant's tax files by the First Respondent, the transmission of investigative files concerning the Applicant, particularly the file *4 St *5*7/20t of the Economic and Corruption Prosecutor's Office (hereinafter: WKStA) by the Second Respondent, as well as the storage and evaluation of these files, which contain personal data concerning the Applicant, by the Third Respondent.

According to a supplementary request for evidence pursuant to § 25 para. 2 VO-UA dated February 1, 2024 (a copy of which the Applicant attached to his application), the Second Respondent had already provided numerous personal data concerning the Applicant to the Third Respondent by that time, particularly the aforementioned file of the WKStA, which concerns donations made by the Applicant from his private assets. This file contains a very large amount of personal data concerning the Applicant. Since he is listed as a suspect in the mentioned file, these are data that may only be

processed in accordance with § 4 para. 3 DSG if there is an explicit legal basis for it (Z 1), or if the permissibility arises from legal due diligence obligations or is necessary to safeguard legitimate interests of the controller or a third party, while ensuring the interests of the data subject under the GDPR and the DSG (Z 2).

According to the same request for evidence, the First Respondent had also submitted numerous personal data concerning the Applicant, which relate to tax circumstances for which tax audits had taken place, to the Third Respondent by February 1, 2024. With the supplementary request for evidence, the Third Respondent ultimately requested all tax files concerning the Applicant. Both in the files and documents provided by the First Respondent and the Second Respondent, extensive personal data concerning the Applicant are contained (e.g., name, tax number, date of birth, etc.). In particular, several authorities subordinate to the First Respondent and the Second Respondent have, in recent years, extensively investigated the personal environment of the Applicant and his immediate privacy.

is a legal document text in German that requires translation into English while preserving the meaning and important formatting cues. Here is the translation:

illuminated. These authorities have conducted several searches of private residences of the applicant, his family, and his closest friends and companions. It is even the declared intent and purpose of many investigations ordered by the WKStA or conducted by the Office for Fraud Prevention on behalf of the WKStA to specifically ascertain the extent of the applicant's personal relationships with numerous individuals in his environment to whom he has made gifts in recent years.

This data has now been transmitted by the authorities to the third respondent, who is now storing and evaluating it. Both the transmission to the third respondent and his current storage and evaluation are processing operations according to Art. 4 No. 2 GDPR, which are unlawful.

The third respondent appointed by the Austrian National Council concerns the following subject of investigation according to the request for establishment:

“The subject of investigation is the execution by federal authorities, in particular the COVID Financing Agency of the Federal Government (COFAG), in connection with individuals to whom a fortune of at least one billion euros can be attributed and who

- have supported the Austrian People's Party (ÖVP) through donations or
- have been solicited for support from the Austrian People's Party (ÖVP) in the context of the 'Project Ballhausplatz',

between December 18, 2017, and November 23, 2023, with regard to their (alleged) preferential treatment.”

Both criteria must be cumulatively present; this understanding also corresponds to the explanations of the request, which state:

“To enable a targeted investigation and not to place every wealthy person under general suspicion, the group of persons relevant to the investigation is additionally restricted by the criterion of proximity to the ÖVP: Thus, only those individuals with an attributable fortune of at least one billion euros are included in the investigation, for whom support has simultaneously been solicited from the ÖVP or who have provided corresponding support to the ÖVP.”

In the request for the establishment of an investigative committee, numerous individuals are also named who are said to meet both Criterion 1 and Criterion 2. The applicant is not on this list. Neither his name nor that of any company in which he is significantly involved appears in the 46-page request. The assertion in the evidence request dated February 1, 2024, that the applicant is expressly included in the subject of investigation and is mentioned in the request for establishment, is simply incorrect. This alone shows that the evidence request of the third respondent evidently deviates from the subject of investigation by mistake.

He has never supported the ÖVP, nor has he ever been solicited for support by the ÖVP, nor has any person directly or indirectly attributable to the ÖVP solicited his support for the ÖVP or its subsidiary or affiliated organizations. This also applies to all companies in which he is directly or indirectly significantly involved.

That the third respondent has decided in a supplementary evidence request that, in addition to the tax files of Mr. Georg B***, Karl C***, and Anatolij D*** (all of whom are on the “name list” contained in the request), the tax file of the applicant is also required from the tax administration, is therefore likely an oversight.

The issue of possible donations by him or by companies in which he is significantly involved has already been the subject of official investigations. All of these investigations have been closed because it has been proven that he has not provided any corresponding support to the ÖVP.

He therefore does not belong to the “specific persons” mentioned in the request for establishment, and the subject of investigation does not pertain to him.

The described processing operations would therefore violate the applicant's right to data protection. In its ruling of December 11, 2018, UA 2/2018, the Constitutional Court (VfGH) stated that persons affected by the submission of files and documents “(e.g., according to the Data Protection Act) have the option to take action against the body that has allegedly submitted files and documents to the investigative committee unlawfully before the competent authorities” (addition in the quote by the applicant).

In the judgment of January 16, 2024, C-33/22 (Data Protection Authority), the Court of Justice of the European Union (CJEU) noted in a case specifically concerning an Austrian parliamentary investigative committee that the Data Protection Authority is also responsible for data protection violations of a parliamentary investigative committee and must oversee its data processing.

The Data Protection Authority therefore has oversight over all processing operations complained of in the present complaint (presumably meant: in the present application).

The VO-UA restricts both the taking of evidence itself according to § 22 VO-UA as well as all evidence procurement, in particular §§ 24 and 25 VO-UA, each to the extent that these must occur within the framework of the subject of investigation. § 23 VO-UA already defines as evidence only “what is suitable to serve the investigation within the framework of the subject of investigation.” This

meets the additional evidence requirements according to § 25 Abs. 3 VO-UA. Since the applicant is not part of the subject of investigation, there is no legal basis for the first respondent and the second respondent to transmit personal data concerning the applicant to the third respondent. Furthermore, all data processing activities of the third respondent and its members regarding the personal data of the applicant are unlawful.

These data also contain, in addition to information about the applicant's income and assets, particularly information about the travel movements and residences of the applicant and his family or his immediate personal environment, especially since the tax authorities also check flight and accommodation costs as part of tax audits and have collected information for this purpose. Movement profiles could be created from this data without much effort. Moreover, these documents also contain numerous personal data concerning the applicant's immediate environment, particularly his children, who have nothing to do with the subject of investigation.

There is an imminent danger if the omission of official measures is likely to lead to a situation where an affected person would have to endure (further) violations of privacy or even damages that could be prevented by the preliminary prohibition of data processing. The applicant's request is directed against the already ongoing unlawful storage and evaluation of the applicant's personal data by the third respondent, as well as against the unlawful transmission of further personal data concerning the applicant requested by the third respondent in the supplementary evidence request. It is evident and legally recognized that the applicant has a strong interest in confidentiality, particularly regarding his tax data. The prohibition of this data processing ex ante is the only effective means to safeguard the constitutionally and EU law-protected data protection rights of the applicant.

Unfortunately, it has become common practice that all documents and data transmitted to investigative committees are immediately published (especially through “leaks” to the media).

Due to the current political situation – particularly the ongoing election campaigns – it is highly likely that the applicant's private tax data will be made accessible to the general public. This is partly

because the group of individuals who have access to the unlawfully stored personal data of the applicant is hardly restricted, and this group is largely also associated with the political sphere. On the other hand, certain parties represented in the third respondent generally have a negative attitude towards entrepreneurs and particularly wealthy individuals.

Already the further storage and processing of this data, and the fact that all members of the third respondent as well as their parliamentary staff would have access to this data, would expose the personal data of the applicant to a practically already almost unlimited circle of persons. As long as his data remains secured and accessible in this manner, the described danger is imminent. Therefore, his legitimate confidentiality interests are continuously violated at this time. By prohibiting this processing, it could at least be prevented in the future that this violation continues or that the processing and/or publication of this personal data becomes even more serious.

Due to the fact that the first respondent and the second respondent – although he is not covered by the subject of investigation – have already obviously provided personal data concerning the applicant to the third respondent without any critical scrutiny, it is to be expected that they would also comply with the now issued supplementary request for evidence. This follows directly from the supplementary request for evidence, according to which the first and second respondents are requested to submit all documents that have not yet been transmitted, which on the one hand confirms that there has already been a transmission of personal data by the first and second respondents and on the other hand indicates that further transmissions are to take place. Thus, a disclosure through transmission is concretely and immediately imminent, which constitutes data processing in the sense of Art. 4 No. 1 GDPR, which, however, violates § 4 Abs. 3 DSG and is therefore unlawful.

Attached to the application is a request pursuant to § 25 Abs. 2 VO-UA by the Members of Parliament Ludwig T***, Dietmar U*** to the Federal Minister of Finance regarding tax files of Georg B***, Karl C***, Anatolij D***, and Ulrich A*** dated 1*. February 2024 in copy.

B. Findings of Facts

On November 24, 2023, the request for the establishment of an investigative committee pursuant to § 33 Abs. 1 2nd sentence GOG-NR concerning "Two-Class Administration due to the Favoring of Billionaires by ÖVP Government Members (COFAG Investigative Committee)" was submitted to the National Council (6/US XXVII. GP), and the relevant investigative committee was established on December 15, 2023, during the 247th session of the National Council.

On 1*. February 2024, the Members of Parliament Ludwig T***, Dietmar U*** submitted the following request pursuant to § 25 Abs. 2 VO-UA to the Federal Minister of Finance:

[Note by the editor: The document reproduced here as a facsimile (graphic file) containing the names of the complainant and other affected persons cannot be pseudonymized with reasonable effort and has therefore been removed. The content is reflected in the above presentation of the complainant's submission.]

On March 1, 2024, the applicant in the present proceedings submitted a request to the Data Protection Authority for the prohibition of data processing concerning the preparation and transmission of his personal data to the COFAG Investigation Committee. The request was directed, among others, against the same first respondent in the present proceedings. The Data Protection Authority addressed this request with a decision dated March 5, 2024, GZ: D124.0686/24 [Note: Case number, not ELAK case number].

Evidence Assessment: The findings arise from the applicant's submission dated March 15, 2024, as well as from the copy of the supplementary request for evidence submitted by him on February 24, 2024. The findings related to D124.0686/24 arise from this file, and the relevant content of the file is known to the applicant.

D. From a legal perspective, it follows:

D.1. Regarding the Mandate Decision in General

Mandate decisions typically serve the immediate and official enforcement of non-deferrable measures of an administrative police nature in a one-party procedure. In this respect, they have a provisional character and thus do not fit into a procedure with multiple parties, in which a (final) decision could be

issued that would definitively regulate the matter in dispute between the parties after appropriate investigations have been conducted.

Thus, this is an atypical mandate decision of its own kind; however, from the clear wording of the law in light of the applicant's submission, it can be inferred that the legislator intended to grant the affected party a subjective right to legal protection through the Data Protection Authority. Therefore, the present application must be decided on its merits (cf. the decision of October 29, 2015, GZ: DSB-D215.861/0010-DSB/2015).

DSB-D215.861/0010-DSB/2015).

According to § 22 Abs. 4 DSG in conjunction with § 57 Abs. 1 AVG, the Data Protection Authority is authorized to prohibit the continuation of data processing by mandate decision without prior investigative proceedings if the operation of data processing poses a significant immediate threat to the protected confidentiality interests of the affected person (imminent danger) and thus takes into account an increased risk potential in cases of imminent danger (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 8).

Since no investigative proceedings by the Data Protection Authority need to precede the issuance of a mandate decision, it is the applicant's responsibility to certify the legal requirements for the issuance of the decision together with the application (to make credible, to provide circumstantial evidence; cf. Schmidl in Gantschacher/Jelinek/Schmidl/Spanberger, Commentary on the DSG, § 22 Anm. 9). A later rectification of the certification or an evidentiary procedure regarding this would be incompatible with the character of the decision under § 22 DSG as a non-deferrable measure of an administrative police nature (data protection police emergency order) (cf. the decision of the Data Protection Authority dated September 24, 2015, GZ: DSB-D215.813/0012-DSB/2015).

The issuance of a mandate decision requires, on the one hand, a material illegality of the data processing, for which a justified suspicion is already sufficient. Thus, there must be factual indications that justify the assumption of the likelihood that provisions of data protection law have been violated, and this must be presented in a rationally comprehensible manner (cf. VwGH March 21, 2012, 2012/16/0005). On the other hand, it is necessary that the operation of this data processing poses a significant immediate threat to the protected confidentiality interests of the affected parties (i.e., imminent danger) (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 15). Both criteria must be met for the issuance of a mandate decision.

Imminent danger exists if the omission of the official measure would likely lead to the affected parties suffering (further) violations of privacy or even damages that could be prevented by issuing the provisional prohibition of data processing. § 22 Abs. 4 DSG represents a *lex specialis* to § 57 AVG. This means that the otherwise required examination of the non-deferrability of the measure in relation to the necessary duration of the investigative procedure in the data protection area is omitted (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 18).

To fulfill the elements of the "imminent danger," a general concern regarding future events is not sufficient (cf. DSK March 30, 2012, K121.765/0008-DSK/2012). The existence of imminent danger must be substantiated with facts that are specific to the individual case. Pure speculation, hypothetical considerations, or merely everyday experience-based, case-independent assumptions are not sufficient (cf. Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 20).

D.2.

Regarding the Existence of a Significant Immediate Threat to the Protected Confidentiality Interests of the Applicant Due to the Operation of the Data Processing in Question (Imminent Danger):

Regarding the First Respondent:

In relation to the first respondent, the already issued decision GZ: D124.0686/24 (2024-0.175.712) dated March 5, 2024, must be noted, with which the application for the issuance of a mandate decision pursuant to § 22 Abs. 4 DSG in conjunction with § 57 AVG against the first respondent (not legally binding) submitted by the same applicant on March 1, 2024, was rejected.

In the application, the applicant requested that the data protection authority prohibit the first respondent from immediately "preparing and transmitting any personal data stored about [him] at the respondents, particularly [his] personal tax records, to the U-Committee."

The first respondent in that procedure was, as in the present case, the Federal Minister of Finance,

which means that the applicant's right to request regarding the processing operations of preparation and transmission by the first respondent has already been exhausted, as otherwise the identical request from the previous application would have to be assessed again in the present procedure. However, it must be discussed in the context of the present procedure regarding the application, insofar as it goes beyond the request of March 1, 2024.

Thus, the processing types "further storage" and "any further transmission" to the third respondent must be assessed.

Regarding the first respondent and the second respondent:

As established, members of the Austrian National Council requested, with a request pursuant to § 25 para. 2 VO-UA dated February 1, 2024, a transfer of further data, including the complete tax file of the applicant, to the third respondent.

The applicant explicitly stated that the danger in the issuance of a mandate decision pursuant to § 22 para. 4 DSG in conjunction with § 57 para. 1 AVG is that it is "unfortunately now common practice" for all documents and data transmitted to investigation committees to be immediately published (especially through "leaks" to the media), and that the transmission to the third respondent would therefore be associated with an irretrievable disadvantage arising from the publication of personal data.

The admissibility of a mandate decision requires that a danger situation is to be feared from the respondent or the respondents and responsible parties in the sense of Art. 4 No. 7 GDPR.

Even assuming that the "leaks" feared by the applicant occur, thus personal data of the applicant is transmitted and disclosed to the media by members (or parliamentary staff) of the third respondent, it is not apparent in this context to what extent this danger situation would be directly caused by the contested data processing by the first respondent or the second respondent, as the applicant's request in this procedure is directed against the further storage, preparation, and the already occurred transmission to the third respondent as well as any further transmission to the third respondent of data related to the applicant by the first respondent and the second respondent (as already stated, only the processing by storage and further transmission regarding the first respondent is examined, thus not the storage or the transmission to the third respondent).

The applicant explicitly criticizes the transmission of the applicant's tax records to the third respondent. The disclosure of this personal data (e.g., to the media) directly by the first respondent or the second respondent has not been claimed by the applicant at any time. Likewise, the storage of personal data or the preparation prior to a transmission has not been directly criticized as realizations of an imminent danger. The criticized danger of further transmissions of personal data by the first respondent or the second respondent to the third respondent cannot be considered as an unsubstantiated assertion leading to the assumption of a concrete imminent danger.

From the applicant's submissions, only a general concern regarding future events can be derived. In the fear that members of the investigation committee would disclose information they became aware of in the course of their work for the investigation committee to third parties—contrary to existing confidentiality obligations—it is viewed by the data protection authority merely as hypothetical considerations or merely assumptions based on everyday experience (the applicant states: "It is unfortunately now common practice for all documents and data transmitted to investigation committees to be immediately published (especially through 'leaks' to the media)."), which are not suitable to demonstrate the existence of a concrete danger situation in the sense of § 22 DSG (cf. again Thiele/Wagner, Practical Commentary on the Data Protection Act (DSG), § 22 DSG, Rz 20).

In summary, it can thus be stated that the alleged endangerment of the applicant's interests is seen in the activities of members of the investigation committee, but not in the—regardless of the nature—data processing by the first respondent or the second respondent and therefore lies outside their sphere.

Regarding the third respondent:

As the applicant correctly states in his application, the CJEU recently ruled in its judgment of January 16, 2024, C-33/22, following a preliminary ruling request under Art. 267 TFEU (regarding the Austrian data protection authority), that "it cannot be assumed that an activity lies outside the scope of Union law and is thus exempt from the application [of the GDPR] solely because it is carried out by an investigation committee established by the Parliament of a Member State in the exercise of its control

over the execution."

In another point of ruling, the CJEU recognized that if only a single supervisory authority is established in a Member State pursuant to Art. 51 para. 1 GDPR, but this authority is not endowed with the jurisdiction to monitor the application of the GDPR by an investigative committee established by the parliament of that Member State in the exercise of its oversight rights, then this authority is directly entrusted with the jurisdiction to decide on complaints regarding processing of personal data carried out by this investigative committee.

It is now clearly established that the data protection authority, as the currently only established supervisory authority in Austria according to Art. 51 GDPR, is called upon to oversee parliamentary investigative committees, which is why the application for the issuance of a mandate decision by the applicant must also be considered permissible in relation to the third respondent and must be addressed substantively.

As already stated, the applicant argues that the danger of delay lies in the fact that members of the third respondent or their parliamentary staff may pass on personal data of the applicant to the media, as has already occurred in the past with parliamentary investigative committees.

As a result, the applicant's request must nevertheless be dismissed in relation to the third respondent.

The applicant's assertion that the transmission of personal data concerning him to the third respondent and parliamentary staff gives a large number of people access to this data is to be agreed upon.

The tasks and competencies of a parliamentary investigative committee are regulated in the annex to the rules of procedure of the National Council in the VO-UA.

Not regulated and therefore not legally provided for is the transfer of documents or data to media representatives, regardless of whether such documents contain personal data or not.

In the materials concerning the amendment of the parliamentary investigative committee, in which the right of establishment for a parliamentary minority according to Art. 53 para. 1 B-VG was also introduced, it is stated regarding complaints based on violations of personal rights to the Constitutional Court according to Art. 138b para. 1 no. 7 lit. b B-VG:

"The complaint is only admissible if the member or the official has behaved 'in the exercise of his profession' (cf. Art. 57 para. 1 B-VG). Actions outside the investigative committee, such as in press conferences, are therefore not covered by the scope of application" (Explanations to the initiative request: IA 718/A XXV. GP, 19).

According to the case law of the Constitutional Court, statements in interviews with the media or in press releases or the transfer of documents submitted by the investigative committee to persons outside the investigative committee cannot be the subject of a complaint under Art. 138b para. 1 no. 7 B-VG, because this behavior is not covered by the professional immunity of the members of the National Council in the sense of Art. 57 para. 1 B-VG (Constitutional Court 29 June 2023 UA 1/2023, para. 24).

"In the exercise of the profession" means according to the case law of the Constitutional Court that only the behavior of a member of the investigative committee during and not outside the meetings of the investigative committee can be the subject of the proceedings under Art. 138b para. 1 no. 7 B-VG (VfSlg. 20.015/2015, para. 76; Constitutional Court 25 September 2021, UA 6/2021, para. 50 f).

This important distinction must also be considered in this context: The transfer of files that have been submitted to an investigative committee by members of the investigative committee, parliamentary staff, or others to the media or other third parties is not legally provided for.

Therefore, if official press conferences held by members of an investigative committee cannot be seen as actions "in the exercise of the profession," any potential data transmission in the context of such press conferences or similar events cannot be attributed to the third respondent.

The (data protection law) responsibility for such actions thus fundamentally lies – subject to an examination in individual cases – with the individual member of the investigative committee

themselves.

There are also no indications that in previous cases “leaks” to the media could be attributed to an investigative committee; rather, they originated from individual members who carried out such data processing independently, thus not in “the exercise of their profession as members of the National Council.”

Thus, such data processing does not fall within the sphere of the third respondent, which is why the application must also be dismissed in relation to the third respondent.

Furthermore, in addition to the ruling of the CJEU of 16 January 2024, C-33/22, the previous case law of the Constitutional Court and the accompanying decision-making practice of the data protection authority must also be taken into account, according to which the role of the data protection authority in the case of a duty to present to an investigative committee is limited to ex-post control (see, for example, the decision of 25 September 2021, UA 6/2021 with references; see also the – granting – decision of 8 September 2021, GZ: 2021-0.474.768). The recent case law of the CJEU does not change this ruling practice.

Whether the applicant's data was lawfully transmitted by the first respondent and the second respondent to the third respondent, or whether such transmission should have been omitted, for instance, because the applicant is not covered by the order of appointment, is thus reserved for subsequent examination.

It was therefore to be decided accordingly.

In the present case, the applicant submitted a request for the issuance of a mandate decision pursuant to § 22 para. 4 DSG in conjunction with § 57 para. 1 AVG in conjunction with Art. 58 para. 2 lit. f GDPR.

For this reason, the legal bases for a mandate decision are also cited in the "decision header" as well as in the legal bases (§ 22 para. 4 DSG and § 57 AVG). Nevertheless, the rejection does not take the form of a mandate decision, as the required characteristic of urgency as per § 57 para. 1 AVG is certainly lacking in this case. A mandate decision – and thus a legal protection procedure that is extended and prolonged by the possibility of representation – only makes sense in the case of a positive administrative police intervention (cf. "urgent measures" in § 57 para. 1 AVG), but not in the present case of the rejection of such a requested intervention due to the absence of the legal prerequisites (see again the aforementioned decision of September 24, 2015).